

Date: 1/16/13

FOR NEW LICENSES AND TRANSFER
LICENSE AND/OR PERMIT APPLICATION
FOR LIQUOR, COUNTY MALT BEVERAGE, LIMITED, WINERY OR MICROBREWERY

To be completed by the City, Town or County Clerk:

Date Filed: 11/5/13 R 066529

	Annual Fee	Prorated Fee
Basic Fee:	\$ _____	\$ _____
Add'l Dispensing Room Fee:	\$ _____	\$ _____
Transfer Fee:	\$ <u>100.00</u>	\$ _____
Total License Fee	\$ <u>100.00</u>	\$ _____
Collected		
Publishing Fee Collect:	\$ <u>100.00</u>	

Required Attachments Procedural: Yes ☒
 Advertising Dates(4): Nov. 16, 23, 30, Dec. 7, 2013
 Hearing Date: Dec. 19 12013
 Local Licensing Number: 36

LICENSING AUTHORITY: Begin publishing promptly. As W.S. 12-4-104(d) specifies: **NO LICENSING AUTHORITY SHALL APPROVE OR DENY THE APPLICATION UNTIL THE LIQUOR DIVISION HAS CERTIFIED THE APPLICATION IS COMPLETE.**
 A copy must be immediately forwarded to:
 State of Wyoming Liquor Division
 1520 E 5th Street
 Cheyenne WY 82002-0110

Formerly Held by: Texas Roadhouse of Cheyenne, LLC
 Applicant: Texas Roadhouse Holdings LLC
 Trade Name (dba): Texas Roadhouse
 Premise: 1931 Bluegrass Circle
 Number & Street
Cheyenne WY 82009 Laramie
 City State Zip County
 Mailing Address: 6040 Dutchmans Lane (Attn: Licensing
 Number & Street or P.O. Box
Louisville KY 40205
 City State Zip
 Business Telephone Number: (502) 638-5412 (Corp.)
 Fax Number: (502) 426-3274 (Corp.)
 E-Mail Address: dawn.baucco@texasroadhouse.com
 For the license term: upon issuance
 Month Day Year
 Through: March 31 2014
 Month Day Year

FILING FOR ☐ NEW ☐ TRANSFER LOCATION ☒ TRANSFER OWNERSHIP	TYPE OF LICENSE OR PERMIT (CHOOSE ONLY ONE) ☒ RETAIL LIQUOR LICENSE ☒ on-premise only ☐ off-premise only ☐ combination on/off premise ☐ RESTAURANT LIQUOR LICENSE ☐ RESORT LIQUOR LICENSE ☐ COUNTY RETAIL or SPECIAL MALT BEVERAGE PERMIT ☐ VETERANS CLUB ☐ FRATERNAL CLUB ☐ GOLF CLUB ☐ SOCIAL CLUB ☐ MICROBREWERY ☐ WINERY ☐ BAR AND GRILL	To Assist the Liquor Division with scheduling inspections: DO YOU OPERATE? ☒ FULL TIME (e.g. Jan through Dec) ☐ SEASONAL/PART-TIME (specify months of operation) from <u>Jan</u> to <u>Dec</u> DAYS OF WEEK (e.g. Mon through Sat) <u>Monday through Sunday</u> HOURS OF OPERATION (e.g. 10a - 2a) <u>Mon-Thurs 4pm-9:30pm</u> <u>Fri-Sat 11am-10pm</u> <u>Sun 11am-9:30pm</u>
FILING IN (CHOOSE ONLY ONE) ☒ CITY OF <u>Cheyenne</u> ☐ COUNTY OF _____	FILING AS (CHOOSE ONLY ONE) ☐ INDIVIDUAL ☐ PARTNERSHIP ☐ CORPORATION ☐ LTD PARTNERSHIP ☐ ASSOCIATION ☐ ORGANIZATION	☒ LLC ☐ LLP

1. Location of License:

(a) Give a description of the dispensing room and state where it is located in the building (e.g. 10x12 room in SE corner of 1st floor of building). If the building is not in existence, provide the location and an architect's drawing or suitable plans of the room and premises to be licensed: If Winery or Microbrewery, also list manufacturing facility. W.S. 12-4-102(a)(i):

740 sq. ft. room in center of restaurant.

(b) Do you have an additional dispensing room? ☐ YES ☒ NO If yes, provide description and location:

(c) Provide the legal description and the zoning of the site where the applicant will conduct business:
Lots 2,3,4,5,6,7 and parts of 1,8 and 9 of block 10 in Meadowbrook Park Zoned: C1

2. Do you W.S. 12-4-103 (a) (III):

- (1) **OWN** the building in which sales room is located?
 (2) **LEASE** the building in which sales room is located?

☒ YES (own)
☐ YES (lease)

(A) **DATE** lease expires _____ located on page _____ paragraph _____ of lease document.

(B) Provision for **SALE** of alcoholic or malt beverages located on page _____ paragraph _____ of lease document.

NOTE: Attach a true copy of the lease to application. Lease **MUST** contain provision for **SALE OF ALCOHOLIC or MALT BEVERAGES** and be valid **THROUGH** the **TERM OF THE LICENSE** W.S. 12-4-103(a)(III).

3. Have you already assigned, leased, transferred or do you intend to assign, lease, transfer, contract or in any other manner agree with any person or firm other than yourself as licensee to operate and assert control or partial control of the license and the licensed room to carry on the licensed liquor business?
☐ YES ☒ NO

4. Does any manufacturer, brewer, rectifier, wholesaler, or through a subsidiary affiliate, officer, director or member of any such firm: W.S. 12-5-401, 12-5-402, 12-5-403
- (a) Hold any interest in the license applied for? ☐ YES ☒ NO
- (b) Furnish by way of loan or any other money or financial assistance for purposes hereof in your business? ☐ YES ☒ NO
- (c) Furnish, give, rent or loan any equipment, fixtures, interior decorations or signs other than standard brewery or manufacturer's signs? ☐ YES ☒ NO
- (d) If you answered YES to any of the above, explain fully and submit any documents in connection therewith:

5. Does applicant have any interest or intent to acquire an interest in any other retail liquor license to be issued by this licensing authority? W.S. 12-4-103(b) ☐ YES ☒ NO
- If "YES", explain: _____

6. Is applicant a mayor, member of a city or town council, or member of the board of county commissioners within the jurisdiction of this licensing authority? W.S. 12-4-103(a)(i) ☐ YES ☒ NO

7. Is applicant employed by the State, City or Town, or County as a law enforcement officer, or hold office as a law enforcement officer through election? W.S. 12-4-103(a)(ii) ☐ YES ☒ NO

RESTAURANT OR BAR AND GRILL LICENSE: Complete questions 8(a) and 8(b): N/A

8. (a) Have you submitted a valid food service permit upon application? W.S. 12-4-407(a) W.S. 12-4-413(a) ☐ YES ☐ NO
- (b) Was your dispensing room for alcoholic and/or malt beverages in existence and open for consumption purposes prior to February 1, 1979? W.S. 12-4-410(b) ☐ YES ☐ NO ☐ N/A

RESORT LICENSE: Complete questions 9(a) through 9(c): N/A

9. (a) Is the actual valuation of the resort complex at least one million dollars, or have you committed or expended at least one million dollars (\$1,000,000.00) on the complex, excluding the value of the land? W.S. 12-4-401(b)(i) ☐ YES ☐ NO
- (b) Does the resort complex include a restaurant and a convention facility which will seat at least one hundred (100) persons? W.S. 12-4-401(b)(ii) ☐ YES ☐ NO
- (c) Does the resort complex include motel or hotel accommodations with at least one hundred (100) sleeping rooms? W.S. 12-4-401(b)(iii) ☐ YES ☐ NO

MICROBREWERY AND/OR WINERY LICENSE: Complete questions 10 through 11: N/A

9. Is premise to be co-existent with a retail, restaurant, resort or bar and grill liquor license? W.S. 12-4-412(b)(iii) ☐ YES ☐ NO

If "YES", please specify type: ☐ Microbrewery ☐ Winery ☐ Retail ☐ Restaurant ☐ Resort ☐ Bar and Grill: .

11. (a) Do you self distribute your products? ☐ YES ☐ NO
- (b) Do you distribute your products through an existing malt beverage wholesaler? ☐ YES ☐ NO

ORGANIZATION AND/OR CLUB LICENSE: Complete questions 12 through 15 as applicable: N/A

12. FRATERNAL CLUBS W.S. 12-1-101(a)(iii)(B)

- (a) The name and address of the grand lodge or national organization is: _____
- (b) Does lodge or fraternal organization hold a charter from a national organization or national grand lodge? ☐ YES ☐ NO
- (c) Has the fraternal organization been actively operating in at least thirty-six (36) states? ☐ YES ☐ NO
- (d) Has the fraternal organization been actively in existence for at least twenty (20) years? ☐ YES ☐ NO

13. VETERANS CLUBS W.S. 12-1-101(a)(iii)(A): N/A

- (a) The name and address of the National Veterans organization is: _____
- (b) Has the Veteran's organization been chartered by the Congress of the United States for patriotic, fraternal or benevolent purposes? ☐ YES ☐ NO
- (c) Is the membership of the Veteran's organization comprised only of Veterans and its duly organized auxiliary? ☐ YES ☐ NO

14. SOCIAL CLUBS W.S. 12-1-101(a)(III)(E): N/A

- (a) Do you have more than one hundred (100) bona fide members who are residents of the county in which the club is located? ☐ YES ☐ NO
- (b) Is the club incorporated and operating solely as a nonprofit organization under the laws of this state? ☐ YES ☐ NO
- (c) Is the club qualified as a tax exempt organization under the Internal Revenue Service? ☐ YES ☐ NO
- (d) Has the club been in continuous operation for a period of not less than one (1) year? ☐ YES ☐ NO
- (e) Has the club received twenty-five dollars (\$25.00) from each bona fide member as recorded by the secretary of the club and are club members at the time of this application in good standing by having paid at least one (1) full year in dues? ☐ YES ☐ NO
- (f) Does the club hold quarterly meetings and have an actively engaged membership carrying out the objectives of the club? ☐ YES ☐ NO
- (g) Have you filed a true copy of your bylaws with the local licensing authority and the Wyoming Liquor Division? ☐ YES ☐ NO
- (h) Has at least fifty one percent (51%) of the membership signed a petition indicating a desire to secure a Limited Retail Liquor License **(THE PETITION MUST BE ATTACHED TO APPLICATION)**? ☐ YES ☐ NO
- (i) Have you filed with the licensing authority and the Wyoming Liquor Division a detailed statement of your activities during the preceding year which were undertaken or furthered in pursuit of the objectives of the club, along with an itemized statement expended for such activities? ☐ YES ☐ NO

15. GOLF CLUBS W.S. 12-1-101(a)(III)(D): N/A

- (a) Do you have more than fifty (50) bona fide members? ☐ YES ☐ NO
- (b) Do you own, maintain, or operate a bona fide golf course together with clubhouse? ☐ YES ☐ NO

- 16. (a) If applicant is an individual or Partnership:** State the name, date of birth and residence of each applicant or partner, if the application is made by more than one individual or by a partnership. **If the application is for a Club:** State the name, date of birth and residence of each officer.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	Have you been a DOMICILED resident for at least 1 year and not claimed residence in any other state in the last year?	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
N/A				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐
				YES ☐ NO ☐	YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

- (b) If the applicant is a Corporation, Limited Liability Company, Limited Liability Partnership or Limited Partnership:** State the name, date of birth and residence of each stockholder holding, either jointly or severally, ten percent (10%) or more of the outstanding and issued capital stock of the corporation, limited liability company, limited liability partnership, or limited partnership, and every officer, and every director.

True and Correct Name	Date of Birth	DONOT LIST PO BOXES Residence Address No. & Street City, State & Zip	Residence Phone Number	No. of Years in Corp or LLC	% of Stock Held	Have you been Convicted of a Felony Violation?	Have you been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
						YES ☐ NO ☐	YES ☐ NO ☐
See Attached						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐
						YES ☐ NO ☐	YES ☐ NO ☐

(If more information is required, list on a separate piece of paper and attach to this application.)

OATH OR VERIFICATION

(Requires signatures by ALL individuals, ALL Partners, ONE (1) LLC Member, or TWO (2) Corporate Officers or Directors except that if all the stock of the corporation is owned by ONE (1) individual then that individual may sign and verify the application upon his oath, or TWO (2) Club Officers.) W.S. 12-4-102(b)

Under penalty of perjury, and the possible revocation or cancellation of the license, I swear the above stated facts, are true and accurate.

STATE OF Kentucky)
) SS.
 COUNTY OF Jefferson

Before Me, Dawn M. Baucro (specify) a Notary Public, Officer authorized
 to administer oaths in and for Jefferson County, State of Kentucky, personally appeared
Celia Catlett and Scott Colosi name he/she being first duly sworn by me upon his oath, says that the
 facts alleged in the foregoing instrument are true.
 (Seal)

1. [Signature]
 2. [Signature]
 3. _____
 4. _____

My Commission expires: 2/28/14

Witness my hand and official seal:

Dawn M. Baucro
 (Notary Public or other officer authorized to administer oaths)
 This Notary Public

Dated: 11/1/13

REQUIRED ATTACHMENTS:

- (1) Attach and Hesse Agreements W.S. 12-4-103(a)(III).
- (2) If building is not in existence, an architect's drawing or suitable plans of the room and premises to be licensed must be attached W.S. 12-4-102(a)(I).
- (3) A statement indicating the financial condition and financial stability of new applicant W.S. 12-4-102(a)(v).
- (4) Restaurant or Bar and Grill Liquor License Applications must attach a copy of their CURRENT and valid food service permit W.S. 12-4-407(a) or W.S.12-4-413(a).
- (1) Check or bank draft as payment for the application and for publishing the notice of application. W.S. 12-4-104(a). Direct billing is permissible.
- (2) If transfer, a form of assignment from current licensee, allowing transfer W.S. 12-4-801(b).

NOTE: Federal law requires you to pay a SPECIAL OCCUPATIONAL TAX (federal tax stamp) before you begin business and before July 1 each year thereafter. If you have not paid this tax, contact:

BUREAU OF ATF
 JOHN WELD PECK FEDERAL BLDG RM 6525
 550 MAIN ST
 CINCINNATI OH 45202-3263
 1-800-937-8864

ADVERTISING REQUIREMENTS W.S. 12-4-104(a):

When an application for a license, permit, renewal or any transfer of location or ownership thereof has been filed with a licensing authority, the clerk shall promptly prepare a notice of application, place the notice conspicuously upon the premises shown by the application as the proposed place of sale and public the notice in a newspaper of local circulation once a week for four (4) consecutive weeks. The notice shall state that a named applicant has applied for a license, permit, renewal or transfer thereof, and that protests against the issuance, renewal, or transfer of the license or permit will be heard at a designated meeting of the licensing authority.

HEARING REQUIREMENTS W.S. 12-4-104(b):

Any license or permit authorized under this title shall not be issued, renewed or transferred until on or after the date set in the notice for hearing protests. If a renewal hearing, the hearing shall be held no later than thirty (30) days preceding the expiration date of the license or permit. A license or permit shall not be issued, renewed or transferred if the licensing authority finds from evidence presented at the hearing:

- (I) The welfare of the people residing in the vicinity of the proposed license or permit premises shall be adversely and seriously affected;
- (II) The purpose of this title shall not be carried out by the issuance, renewal or transfer of the license or permit;
- (III) The number, type and location of existing licenses or permits meets the needs of the vicinity under consideration;
- (IV) The desires of the residents of the county, city or town will no be met or satisfied by the issuance, renewal or transfer of the license or permit; or
- (V) Any other reasonable restrictions or standards which may be imposed by the licensing authority shall not be carried out by the issuance, renewal or transfer of the license or permit.

FOR LIQUOR DIVISION USE ONLY		
Reviewer	Initials	Date
Clerk:		
Agent:		
Acct.:		

Supplemental Response to Question 16(b) of License and/or Permit Application:

True and Correct Name	D.O.B.	Residence Address	Residence Phone Number	No. of Years in Corp.	% of Stock Held	Have You Been Convicted of a Felony Violation?	Have You Been Convicted of a Violation Relating to Alcoholic Liquor or Malt Beverages?
Texas Roadhouse, Inc.	N/A	6040 Dutchmans Lane (Attn: Licensing) Louisville, KY 40205	(502) 638-5412	N/A	100% (Parent Corp.)	N/A	N/A
W. Kent Taylor	9/27/55	3619 Trail Ridge Road Louisville, KY 40242	(502) 435-7070	20 years	0%	No	No
Scott M. Colosi	8/21/64	14602 Woodstream Place Louisville, KY 40245	(502) 432-4887	11 years	0%	No	No
G. Price Cooper, IV	9/22/71	1703 Longwood Circle Goshen, KY 40026	(502) 693-7363	7 years	0%	No	No
Steven L. Ortiz	8/8/57	212 Terrace View Stateline, NV 89449	(214) 914-5028	16 years	0%	No	No
Jill Marchant	8/30/65	1221 Park Shore Rd. LaGrange, KY 40031	(502) 741-6393	2 years	0%	No	No
Martin T. Hart	1/20/36	875 Race Street Denver, CO 80206	(303) 501-9210	9 years	0%	No	No
Gregory N. Moore	10/12/49	62 New Dawn Irvine, CA 92620	(714) 231-0969	8 years	0%	No	No
James F. Parker	1/1/47	5808 Lupton Dallas, TX 75225	(214) 766-5352	9 years	0%	No	No
James Ramsey	11/14/48	8902 Adrienne Court Louisville, KY 40245	(202) 550-8020	9 years	0%	No	No
James R. Zarley	7/12/44	4164 LaVenta Dr. Westlake Village, CA 91361	(701) 521-6741	9 years	0%	No	No

Kathleen M. Widmer	10/25/61	913 North Pennsylvania Ave. Yardley, PA 19067	(215) 630- 3373	1 year	0%	No	No
Celia Catlett	5/11/76	1301 Shakes View Ct. Fisherville, KY 40023	(502) 758- 2040	8 years	0%	No	No



T 303-333-9810
F 303-333-9786
360 South Garfield Street
6th Floor
Denver, Colorado 80209

November 4, 2013

Mayor and Members of City Council
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Dear Mayor and Members of City Council:

This letter serves as Texas Roadhouse Holdings, Inc.'s ("TXRH Holdings") introduction and request that Cheyenne's licensing authority approve the transfer of the Retail Liquor License for Texas Roadhouse from Texas Roadhouse of Cheyenne, LLC to TXRH Holdings.

TXRH Holdings and Texas Roadhouse of Cheyenne, LLC are merging, with TXRH Holdings as the surviving entity. TXRH Holdings will continue to operate as Texas Roadhouse and anticipates that the general public will not even be aware of the transition as all employees and operations will remain precisely the same following the merger on December 31, 2013. This merger is being done in an effort to simplify the Texas Roadhouse operations nationwide and bring all of the operations under the ownership of TXRH Holdings. The transfer of this retail liquor license is, of course, a key aspect of the merger.

We are confident that Texas Roadhouse will continue to be successful in Cheyenne and we look forward to a profitable partnership with the City for many years to come.

Very truly yours,

A handwritten signature in blue ink, appearing to read 'B. Proffitt', enclosed within a blue oval.

Brian C. Proffitt

cc: Client



October 31, 2013

City of Cheyenne
c/o Ms. Kristy Anderson
2101 O'Neil Avenue, Rm. 101
Cheyenne, WY 82001

*Re: Texas Roadhouse
1931 Bluegrass Circle
Cheyenne, WY 82009
Retail Liquor License No. 36*

Dear Sirs:

This letter serves as Texas Roadhouse of Cheyenne, LLC's ("Licensee") notice that it wishes to transfer its retail liquor license ("License"), currently in service at 1931 Bluegrass Circle, to its parent company Texas Roadhouse Holdings LLC. This transfer is in conjunction with a merger scheduled to occur between the companies on December 31, 2013. Licensee respectfully requests that the Cheyenne City Council approve this transfer. Licensee acknowledges that it remains the License holder until such time as the application is finally approved by the City Council and that the proceeds from the sale of alcohol at this location must be realized by Licensee until that time.

If you need anything else from Licensee to process this transfer, or if you have any questions regarding this matter, please feel free to contact us at the number in your files.

Sincerely,

Texas Roadhouse of Cheyenne, LLC
By: Texas Roadhouse Holdings LLC, its manager
By: Texas Roadhouse, Inc., its manager



Celia Catlett, Corporate Secretary

PART I — FINANCIAL INFORMATION

ITEM 1 — FINANCIAL STATEMENTS

Texas Roadhouse, Inc. and Subsidiaries Condensed Consolidated Balance Sheets (in thousands, except share and per share data) (unaudited)

	<u>September 24, 2013</u>	<u>December 25, 2012</u>
Assets		
Current assets:		
Cash and cash equivalents	\$ 87,344	\$ 81,746
Receivables, net of allowance for doubtful accounts of \$3 at September 24, 2013 and \$22 at December 25, 2012	11,518	16,416
Inventories, net	10,962	10,909
Prepaid income taxes	1,535	3,374
Prepaid expenses	6,608	7,191
Deferred tax assets	4,399	2,836
Total current assets	<u>122,366</u>	<u>122,472</u>
Property and equipment, net of accumulated depreciation of \$296,530 at September 24, 2013 and \$269,052 at December 25, 2012	565,433	531,654
Goodwill	113,454	113,435
Intangible assets, net	7,877	9,264
Other assets	17,938	14,429
Total assets	<u>\$ 827,068</u>	<u>\$ 791,254</u>
Liabilities and Stockholders' Equity		
Current liabilities:		
Current maturities of long-term debt and obligations under capital leases	\$ 248	\$ 338
Accounts payable	33,027	32,374
Deferred revenue – gift cards	25,424	53,041
Accrued wages	26,349	25,030
Accrued taxes and licenses	15,103	13,253
Dividends payable	8,458	13,135
Other accrued liabilities	22,716	21,491
Total current liabilities	<u>131,325</u>	<u>158,662</u>
Long-term debt and obligations under capital leases, excluding current maturities	51,056	51,264
Stock option and other deposits	4,741	4,718
Deferred rent	22,768	20,168
Deferred tax liabilities	6,419	6,102
Fair value of derivative financial instruments	2,980	4,016
Other liabilities	17,045	15,587
Total liabilities	<u>236,334</u>	<u>260,517</u>
Texas Roadhouse, Inc. and subsidiaries stockholders' equity:		
Preferred stock (\$0.001 par value, 1,000,000 shares authorized; no shares issued or outstanding)	—	—
Common stock, (\$0.001 par value, 100,000,000 shares authorized, 70,511,311 and 68,977,045 shares issued and outstanding at September 24, 2013 and December 25, 2012, respectively)	71	69
Additional paid in capital	221,121	199,967
Retained earnings	365,551	327,509
Accumulated other comprehensive loss	(1,827)	(2,461)
Total Texas Roadhouse, Inc. and subsidiaries stockholders' equity	<u>584,916</u>	<u>525,084</u>
Noncontrolling interests	5,818	5,653
Total equity	<u>590,734</u>	<u>530,737</u>
Total liabilities and equity	<u>\$ 827,068</u>	<u>\$ 791,254</u>

See accompanying notes to condensed consolidated financial statements.

E

STATE OF WYOMING
Office of the Secretary of State

I, MAX MAXFIELD, SECRETARY OF STATE of the STATE OF WYOMING, do hereby certify that the filing requirements for the issuance of this certificate have been fulfilled.

CERTIFICATE OF Authority

Texas Roadhouse Holdings LLC

Accordingly, the undersigned, by virtue of the authority vested in me by law, hereby issues this Certificate.

I have affixed hereto the Great Seal of the State of Wyoming and duly executed this official certificate at Cheyenne, Wyoming on this **13th** day of **November, 2013**.



Filed Date: 11/13/2013


Secretary of State

By: Whitney Harmon

0429068.06

mstratton
SUR

Alison Lundergan Grimes
Kentucky Secretary of State
Received and Filed:
10/25/2013 12:13 PM
Fee Receipt: \$50.00

ARTICLES OF MERGER
OF TEXAS ROADHOUSE OF CHEYENNE, LLC INTO AN
TEXAS ROADHOUSE HOLDINGS LLC

1. *Constituent Business Entities.* The constituent business entities to these Articles of Merger are: (a) Texas Roadhouse Holdings LLC ("Acquisition"), a Kentucky limited liability company organized on February 24, 1997; and (b) Texas Roadhouse of Cheyenne, LLC ("Target"), a Kentucky limited liability company organized on July 6, 2001.

2. *Plan of Merger.* The Plan of Merger relating to the two constituent business entities is attached hereto as Exhibit A.

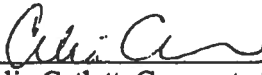
3. *Surviving Business Entity.* The surviving business entity pursuant to the attached Plan of Merger shall be, and hereby is, shall be Texas Roadhouse Holdings LLC.

4. *Approval of Plan of Merger.* The attached Plan of Merger was duly authorized and approved by the sole member of Acquisition and the sole member of Target in accordance with KRS 275.350.

WHEREFORE, by their signatures below, the respective Managers of each of the constituent business entities to these Articles of Merger hereby execute these Articles on behalf of their respective constituent entities hereof and authorize the filing of these Articles of Merger with the Kentucky Secretary of State.

TEXAS ROADHOUSE HOLDINGS LLC

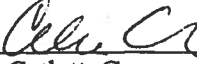
By: TEXAS ROADHOUSE, INC., as Manager

By: 
Celia Catlett, Corporate Secretary
Date: Oct. 24, 2013

TEXAS ROADHOUSE OF CHEYENNE, LLC

By: TEXAS ROADHOUSE HOLDINGS LLC, as Manager

By: TEXAS ROADHOUSE, INC., as Manager

By: 
Celia Catlett, Corporate Secretary
Date: Oct. 24, 2013

PLAN OF MERGER
OF TEXAS ROADHOUSE OF CHEYENNE, LLC
INTO AND WITH TEXAS ROADHOUSE HOLDINGS LLC

THIS PLAN OF MERGER is entered into this 24th day of October, 2013 by and between Texas Roadhouse Holdings LLC and Texas Roadhouse of Cheyenne, LLC, pursuant to KRS 275.355.

1. *Constituent Business Entities and Surviving Entity.* The two constituent business entities that are parties to the merger are: (a) Texas Roadhouse Holdings LLC ("Acquisition"), a Kentucky limited liability company organized on February 24, 1997; and (b) Texas Roadhouse of Cheyenne, LLC ("Target"), a Kentucky limited liability company organized on July 6, 2001. The surviving business entity following the merger shall be Texas Roadhouse Holdings LLC.

2. *Effective Date of Merger; Terms and Conditions.* The effective date of the merger (the "Effective Date") will be December 31, 2013. At the Effective Date, without any action on the part of the member of Target, the outstanding membership interests of Target will be cancelled. At the Effective Date, the issued and outstanding membership interests of Acquisition will remain issued and outstanding as the equity of the surviving business entity. Acquisition, the surviving entity from the merger, will retain its limited liability status.

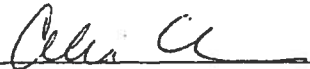
3. *Organizational Matters.* From and after the Effective Date, until changed or amended in accordance with the Articles of Organization, the Operating Agreement of Acquisition, or applicable law: (i) the Article of Organization of Acquisition will be the Articles of Organization of the surviving limited liability company; and, (ii) the Operating Agreement of Acquisition will be the Operating Agreement of the surviving limited liability company. No amendments to the Articles of Organization of Acquisition, the surviving entity, are contemplated as of the date of the merger.

4. *Termination.* At any time prior to the Effective Date, this plan of merger may be terminated by the sole member of Target or the manager of Acquisition notwithstanding the approval of this plan of merger by Target or Acquisition.

WHEREBY the respective Managers of each of Target and Acquisition have, by their signatures below, executed this Plan of Merger on behalf of each of the constituent entities pursuant to the approval granted in accordance with KRS 275.350.

TEXAS ROADHOUSE HOLDINGS LLC

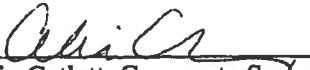
By: TEXAS ROADHOUSE, INC., as Manager

By: 
Celia Catlett, Corporate Secretary
Date: Oct. 24, 2013

TEXAS ROADHOUSE OF CHEYENNE, LLC

By: TEXAS ROADHOUSE HOLDINGS LLC, as Manager

By: TEXAS ROADHOUSE, INC., as Manager

By: 
Celia Catlett, Corporate Secretary
Date: Oct. 24, 2013

TRAVEL, SERVICE AREA

TRAVEL, SERVICE AREA

Texas Roadhouse
Cheyenne, WY
Proposed Floor Plan

snide design

TEXAS Roadhouse

1931 BLUEGRASS CIRCLE
CHEYENNE, WY 82009

NOTES:
SEAT NUMBER ALLOWED TRAVEL, SERVICE AND
STORAGE AREAS FOR OCCUPANCY GROUP A
BASED ON TABLE 101.1

ACCESSIBILITY SEATING AREA

SEATING PLAN

A2.0

CERTIFICATE OF LIEN SEARCH
CLERK OF LARAMIE COUNTY

A search of the records of this office indicates the listing below is a record of the presently effective Financing Statements and Statements of Assignment which we have found on record for **TEXAS ROADHOUSE OF CHEYENNE, LLC** THE UNDERSIGNED, FOR HIMSELF AND FOR LARAMIE COUNTY, DISCLAIMS ANY WARRANTIES, EXPRESS OR IMPLIED, THAT THE FOREGOING IS ABSOLUTELY EXHAUSTIVE AND CORRECT AND NEITHER SHALL BE LIABLE IN ANY WAY WHATSOEVER FOR ANY LOSS OR DAMAGE OF ANY KIND AS A RESULT OF ANY INACCURACIES OR OMISSIONS WITH REGARD TO THIS ABSTRACT. THE SOLE PURPOSE OF THIS ABSTRACT IS TO ACCOMMODATE PERSONS WHO ARE UNABLE OR UNWILLING TO PERSONALLY EXAMINE THE AFORESAID RECORDS.

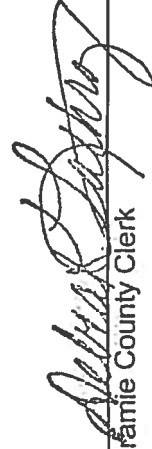
Note: CM= Chattel Mortgage FS= Financing Statement SA= Security Agreement TL= Tax Lien

TYPE	NUMBER	DATE FILED	TIME	MORTGAGEE	AMOUNT	DESCRIPTION
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NO UCC LIENS WERE FOUND

SEE ATTACHED FOR FEDERAL AND STATE TAX LIENS THAT WERE FOUND

Requested by: Foster Graham Milstein & Calisher, LLP
Date: 10/31/2013
Years Checked: 01/01/2007 TO DATE


Laramie County Clerk
SEAL

By: 
Deputy County Clerk
PROPERTY COUNTY CLERK
JAN. 5, 2015
010-004 (R11/11)